

Ferrowave Pulse Terms of Service

Version 5. Effective 10 February 2026. These Terms replace all earlier versions.

These Terms of Service ("Terms") are an agreement between Ferrowave Ltd, a company registered in Ireland (number 698114) with its registered office at 14 Fitzwilliam Lane, Dublin 2, Ireland ("Ferrowave", "we", "us"), and the entity that creates a workspace or signs an order form ("Customer", "you"). By creating a workspace, signing an order form, or using the Ferrowave Pulse service (the "Service"), you agree to these Terms.

1. Definitions

"Order Form" means a document signed by both parties that specifies the plan, fees, term, and any special terms for an Enterprise subscription. "Self-Serve Plan" means the Starter, Growth, or Scale plan purchased through the Service without an Order Form. "Enterprise Plan" means a subscription purchased through an Order Form. "Customer Data" means survey content, respondent data, and responses that you submit to or collect through the Service. "Documentation" means the help articles and developer documentation we publish for the Service. "Policies" means the Refund Policy, Acceptable Use Policy, Privacy Policy, Service Level Agreement, and Data Processing Addendum, each as updated from time to time.

2. The Service

2.1 Ferrowave will provide the Service to you in accordance with these Terms, the applicable Policies, and the Documentation. 2.2 We may modify the Service, provided that we do not materially reduce its core functionality during a paid term without offering a remedy. 2.3 Beta features are provided as-is, may be withdrawn at any time, and are excluded from any service level commitment. 2.4 You are responsible for everyone who accesses the Service through your workspace and for keeping credentials confidential.

3. Accounts and seats

3.1 Each individual user must have their own seat. Sharing a seat between people is prohibited. 3.2 You must provide accurate billing information and keep it current. 3.3 Workspaces are provisioned in the region selected at creation; region changes require a new workspace.

4. Term and termination

4.1 Self-Serve Plans. A Self-Serve Plan begins when you subscribe and renews automatically at the end of each monthly or annual period until cancelled. You may cancel at any time through the Service. Cancellation takes effect at the end of the current paid period and you are not entitled to a refund of fees for the remainder of that period except as set out in the Refund Policy.

4.2 Enterprise Plans. An Enterprise Plan has an initial term of twelve (12) months unless the Order Form states otherwise. At the end of the initial term and each renewal term, the subscription renews automatically for a further twelve (12) months unless either party gives written notice of non-renewal at least sixty (60) days before the end of the then-current term. Fees for the renewal term are as stated in the Order Form or, if the Order Form is silent, Ferrowave's then-current Enterprise pricing, provided that any increase does not exceed seven percent (7%) without your written agreement. Enterprise fees are payable for the full term and are not refundable on early termination for convenience. Either party may terminate an Enterprise Plan for material breach if the breach is not cured within thirty (30) days of written notice.

4.3 Termination by Ferrowave. We may suspend or terminate your access if you breach the Acceptable Use Policy, fail to pay undisputed fees within fifteen (15) days of a reminder, or if required by law. We will give notice where practicable.

4.4 Effect of termination. On termination or expiry, your right to use the Service ends. Customer Data is handled as described in the Data Processing Addendum, which provides for export and deletion within thirty (30) days of termination. Sections 5, 7, 8, 9, 10, and 12 survive termination.

5. Fees and payment

5.1 Fees for Self-Serve Plans are as published on the pricing page at the time of purchase or renewal. Fees for Enterprise Plans are as stated in the Order Form. 5.2 We may change Self-Serve Plan fees by giving at least thirty (30) days' notice through the Service or by email; the new fees apply from your next renewal after the notice period. 5.3 Fees exclude taxes. You are responsible for VAT, sales tax, and similar taxes, which we will add to invoices where we are required to collect them. 5.4 Overage, extra seats, and add-ons are billed as described in the Documentation. 5.5 Late payments may bear interest at four percent (4%) per year above the European Central Bank main refinancing rate. 5.6 Refunds are governed exclusively by the Refund Policy.

6. Customer Data and privacy

6.1 You retain all rights in Customer Data. You grant Ferrowave a licence to host, process, and display Customer Data solely to provide the Service and as permitted by these Terms. 6.2 You are responsible for having a lawful basis to collect Customer Data, including any consent required from respondents. 6.3 Ferrowave processes personal data in Customer Data as a processor under the Data Processing Addendum. 6.4 We may use aggregated, de-identified usage data to operate and improve the Service, provided that it does not identify you or any respondent.

7. Intellectual property

7.1 Ferrowave owns the Service, the Documentation, and all related intellectual property. 7.2 You may not copy, modify, reverse engineer, or create derivative works of the Service except as permitted by law. 7.3 If you provide feedback, we may use it without obligation to you.

8. Confidentiality

Each party will protect the other's confidential information with at least the care it uses for its own, and will use it only to perform under these Terms. Confidential information does not include information that is public through no fault of the recipient, already known to the recipient, independently developed, or lawfully received from a third party. A party may disclose confidential information if required by law, after giving notice where permitted.

9. Warranties and disclaimers

9.1 Ferrowave warrants that the Service will perform materially in accordance with the Documentation. Your exclusive remedy for breach of this warranty is for Ferrowave to correct the non-conformity or, if it cannot, to refund prepaid fees for the affected period. 9.2 Except as expressly stated, the Service is provided as-is and Ferrowave disclaims all other warranties, express or implied, including merchantability, fitness for a particular purpose, and non-infringement. 9.3 Ferrowave does not warrant that the Service will be uninterrupted or error-free; availability commitments, where they apply, are set out in the Service Level Agreement.

10. Limitation of liability

10.1 Neither party is liable for indirect, consequential, special, or punitive damages, or for loss of profits, revenue, or data, arising out of these Terms. 10.2 Each party's total liability arising out of these Terms in any twelve-month period is limited to the fees paid or payable by you in that period. 10.3 These limitations do not apply to liability that cannot be limited by law, to a party's breach of Section 8, or to your payment obligations.

11. Indemnity

Ferrowave will defend you against third-party claims that the Service infringes intellectual property rights and pay resulting damages, provided you notify us promptly and give us control of the defence. You will defend Ferrowave against claims arising from Customer Data or your breach of the Acceptable Use Policy on the same basis.

12. Governing law and disputes

These Terms are governed by the laws of Ireland. The courts of Ireland have exclusive jurisdiction, except that either party may seek injunctive relief in any court of competent jurisdiction. Before starting proceedings, the parties will attempt in good faith to resolve the dispute through senior management discussion for at least thirty (30) days.

13. Changes to these Terms

We may update these Terms by posting a new version and notifying workspace Owners by email at least thirty (30) days before material changes take effect. Continued use after the effective date constitutes acceptance. Enterprise Plans are governed by the version of the Terms in effect at the start of the current term unless the Order Form states otherwise.

14. General

14.1 Order of precedence: Order Form, then these Terms, then the Policies, then the Documentation. 14.2 Neither party may assign these Terms without consent, except to a successor in a merger or sale of substantially all assets. 14.3 Neither party is liable for delay caused by events beyond its reasonable control. 14.4 If a provision is unenforceable, the remainder stays in effect. 14.5 Notices to Ferrowave must be sent to legal@ferrowave.example. Notices to you will be sent to the Owner email address on file. 14.6 These Terms, the Policies, and any Order Form are the entire agreement between the parties on this subject.